

## 22STCV27975 22STCV27975

County: los-angeles

Division: Civil Law and Motion

Department: 729

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Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

JYLA ELSA

CORRAL, et al.,

vs.

FORD MOTOR

COMPANY, et al.

Case No.: 22STCV27975

Hearing Date: July 21, 2026

Defendants Bimbo Bakeries USA, Inc.'s and Earthgrains Distribution, LLC's unopposed motion for leave to file a cross-complaint against Defendants Lorenzo A.

Martinez-Labrie, Manuel Gutierrez, Gutierrez Manuel Inc., and ROES 1 through 200, inclusive, is granted. Defendants Bimbo

Bakeries USA, Inc. and Earthgrains Distribution, LLC may file the proposed cross-complaint with the Court, deemed filed as of July 21, 2026.

Defendants Bimbo Bakeries

USA, Inc.'s and Earthgrains Distribution, LLC's motion for leave to file a first amended answer to Plaintiffs' Second Amended Complaint is granted. Defendants Bimbo Bakeries USA, Inc. and Earthgrains Distribution, LLC may file the proposed first amended answer with the Court, deemed filed as of July 21, 2026.

Defendants Bimbo

Bakeries USA, Inc. ("Bimbo Bakeries") and Earthgrains Distribution, LLC ("Earthgrains") (collectively, "Moving Defendants") move unopposed for an order granting leave to file a cross-complaint ("XC") against Defendants Lorenzo A. Martinez-Labrie, Manuel Gutierrez, Gutierrez Manuel Inc., and ROES 1 through 200, inclusive (collectively, "Defendants") for indemnification, apportionment of fault/contribution, negligence, and express indemnity. (Notice of Motion XC, pg. 2; C.C.P. §§428.50(c), 428.10.)

Moving Defendants

move for leave to file a first amended answer ("FAA") to Plaintiffs' second amended complaint ("SAC"). (Notice of Motion FAA, pg. 2; C.C.P. §§576, 473(a)(1); CRC, Rule 3.1324(a), (b).)

#### 1. Motion to File Cross-Complaint

Procedural

Background

This lawsuit

brought by Plaintiffs Jyla Elsa Corral, Jonaven Hess Corral, Jazlyn Leilani Corral, Jayven Cali Corral, and Jocelyn Gianna Corral, by and through their GAL Rafal Corral, (collectively, "Plaintiffs") individually and as successors in interest to Heather Susy Garcia ("Decedent") arises from a fatal accident on January 22, 2022, wherein Decedent fell out of a moving party bus. Plaintiffs filed their initial complaint on August 26, 2022. On December 15, 2023, Plaintiffs moved for leave to file a First Amended Complaint ("FAC"), which this Court heard and granted on April 11, 2024. On June 16, 2025, Plaintiffs filed DOE amendments naming Bimbo Bakeries as DOE 12, and Earthgrains as DOE 13. On August 18, 2025, Plaintiffs filed the operative SAC.

Moving Defendants

filed the instant motion on May 4, 2026.

As of the date of this hearing no opposition has been filed.

Motion for Leave  
to Amend

C.C.P. §426.50 provides:

A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file a cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This section shall be liberally construed to avoid forfeiture of causes of action.

(C.C.P. §426.50.)

California rules further provide authority to file a Cross-Complaint against a party who has filed a Complaint against the movant if the claims arise out of the same occurrences as the claims brought against it. (See C.C.P. §§428.10(a)-(b).)

At any time during the course of the lawsuit, the court retains power to permit defendant to file or amend a cross-complaint to avoid forfeiture of defendant's "related" claim. (See *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99 [stating even on "eve of trial," leave to file compulsory cross-complaint mandatory absent bad faith].)

Here, the proposed XC arises out of the same incident described in the SAC filed by the Plaintiffs.

Based on the foregoing, Moving Defendants' motion for leave to file their proposed XC is granted.

Conclusion

Moving

Defendants' unopposed motion for leave to file their XC against is granted. Moving Defendants may file the proposed XC with the Court, deemed filed as of July 21, 2026.

Moving Party to give notice.

2.

Motion for Leave to Amend Answer

Legal Standard

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (C.C.P. §473(a)(1).)

"Trial courts are vested with the discretion to allow amendments to pleadings 'in furtherance of justice.' That trial courts are to liberally permit such amendments, at any stage of the proceeding, has been established policy in this state since 1901." (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 488-489.)

A defendant can amend an answer once without leave of court before a demurrer to or motion to strike the answer is filed. A demurrer to or motion to strike the answer must be filed, if at all, within 10 days after service of the answer (C.C.P. §430.40(b)), effectively giving defendant that 10-day period to amend the answer without leave before a demurrer or motion to strike is filed.

If plaintiff has demurred to or filed a motion to strike the answer, defendant can amend the answer without leave up to the date for filing opposition to plaintiff's demurrer or motion to strike; after the date for filing opposition to plaintiff's demurrer or motion to strike, defendant may amend the answer upon stipulation of the parties. (C.C.P. §472.)

Discussion

CRC Rule 3.1321(a) requires that a motion to amend must: “[i]nclude a copy of the proposed . . . amended pleading . . . [and] state what allegations in the previous pleading are proposed to be [deleted and/or added], if any, and where, by page, paragraph, and line number, the [deleted and/or additional] allegations are located.”

CRC Rule 3.1324(b) provides, as follows: “[a] separate declaration must accompany the motion and must specify: (1) [t]he effect of the amendment; (2) [w]hy the amendment is necessary and proper; (3) [w]hen the facts giving rise to the amended allegations were discovered; and (4) [t]he reasons why the request for amendment was not made earlier.”

Moving Defendants’ motion substantially complies with CRC Rule 3.1324(a). The motion includes a copy of the proposed first amended answer. (Decl. of Frey ¶8, Exh. 3.) Moving Defendants’ motion states where, by page, paragraph, and line number, additional affirmative defenses have been stated in the proposed pleading, and where previously asserted affirmative defenses have been removed. (Motion, pgs. 6-7.)

Moving Defendants’ motion substantially complies with CRC Rule 3.1324(b). Moving Defendants’ counsel’s declaration specifies the effect of the amendments and explains why the amendments are necessary and proper. (See Decl. of Frey ¶9.) Moving Defendants assert the amendments are necessary to reduce liability and damages alleged against them. (Motion, pgs. 4-6; see Decl. of Park ¶¶6-9.)

Moving Defendants’ counsel states when the facts giving rise to substantive amended allegations were discovered and why the request for amendment was not made earlier. Moving Defendants’ counsel declares, “the need for the Proposed Amendment arose because Defendants were unaware their former counsel, Manning Kass previously filed the August 2025 answer. It was not until [Moving Defendants’ counsel’s] office could substitute into the case, obtain the file from Manning Kass, and review the file from Manning Case that Defendants had been deprived of multiple key affirmative defenses that needed to be alleged.” (Decl. of Frey ¶10.)

Plaintiffs argue in opposition that Moving

Defendants are bound by their existing answer, and the motion fails to demonstrate diligence or good cause.

(Opposition, pg. 4.) Plaintiffs'

arguments are not well taken. Waxman v. Superior Court (1966) 246 Cal.App.2d 668, cited by

Plaintiffs as compelling denial of this instant motion "as a matter of law," in

fact recognizes the liberal policy applies with special force to answers,

observing that "liberality should be particularly displayed in allowing

amendment of answers." (Waxman, 246 Cal.App.2d at pgs. 669-670.) Plaintiffs also argue that the amendment

would disrupt trial preparation and the orderly progression of the case. (Opposition, pg. 5.) Plaintiffs fail to provide substantive

reasons for prejudice; the Declaration of Torres does not state any specific

discovery that will need to be taken or any experts it will need to

retain. (See Decl. of Torres.)

The policy favoring amendment is so

strong that denial of leave to amend can rarely be justified: "If the motion to

amend is timely made and the granting of the motion will not prejudice the

opposing party, it is error to refuse permission to amend and where the refusal

also results in a party being deprived of the right to assert a meritorious

cause of action or a meritorious defense, it is not only error but an abuse of

discretion." (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.)

Based on the foregoing, Moving

Defendants' motion for leave to amend their answer and file the proposed first amended answer is granted.

Conclusion

Moving Defendants'

motion to amend their answer is granted.

Moving Defendants may separately file their first amended answer, deemed

filed as of July 21, 2026.

Moving Party to give notice.

Dated: July

\_\_\_\_\_, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court